OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

GIPA bid for Shoalhaven's 2026 staff survey, with CEO asked to step aside

Sent 6 November 2026 · To Shoalhaven City Council · Response requested by 27 November 2026

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6 November 2026
The Information Access Officer
Shoalhaven City Council
By email, with a copy to council@shoalhaven.nsw.gov.au

FORMAL ACCESS APPLICATION
Government Information (Public Access) Act 2009 (NSW), Part 4
2026 Council staff survey results
Related Council reference: 78113E (D26/408659) – informal request of 25 October 2026, withdrawn by this application

1. This is a formal access application

I apply under section 41 of the Government Information (Public Access) Act 2009 (the Act) for access to the government information described in Part 3 below. This is an access application made under the Act.

The application meets the formal requirements in section 41(1). It is in writing, and it clearly indicates that it is an access application made under the Act. It will settled with $30 application fee when you provide details. My name appears above, and my address for correspondence is . The information applied for is identified in Part 3.

Please acknowledge in writing that this is a valid access application (section 51(1)(a)).

I have a legally enforceable right to the information unless there is an overriding public interest against disclosure (section 9(1)). Council must decide the application and give me notice of its decision within 20 working days after it receives the application (section 57(1)).

I do not at this stage agree to any extension of the decision period under section 57(4).

1. Withdrawal of my informal request

I withdraw my informal request of 25 October 2026 (Council reference 78113E, D26/408659), which I made under section 8 of the Act through Council's online form. The

withdrawal takes effect when Council receives this application, which replaces that request.

I withdraw it because an agency "cannot be required to consider an informal request" (section 8(3)).

A formal application gives me an enforceable right of access (section 9(1)) and the review rights in Part 5 of the Act.

The withdrawal does not mean I accept that the informal-request arrangement in the Chief Executive Officer's letters of 27 September and 19 October 2026, or any limit on my correspondence with Council, applies to this application. A formal access application is made under the Act, and the Act governs how it is handled.

1. The information applied for

I apply for access to the following existing documents held by Council, for the period 1 January 2025 to the date of this application.

(a) the report of the results of the most recent Council staff survey for 2026 (however titled – for example an employee engagement, culture, satisfaction or wellbeing survey) dealing with employment and related matters as Council staff, including the aggregate results and any accompanying analysis, commentary or comparison with earlier surveys;
(b) the survey questionnaire, so that the results can be read against the questions asked, together with any statement of the response rate; and
(c) any summary, briefing or presentation of those results provided to the Chief Executive Officer, the Executive Leadership Team or councillors.
Each of these is a specific document that already exists, so no new document needs to be created. I ask for access in electronic form, by email to .

1. Who is applying, and why it matters

I am an independent public interest journalist living in the Shoalhaven. I publish Eye on Shoalhaven Council through Substack, a Facebook group, YouTube and the podcast From the Council Gallery, and I have approximately 4,950 subscribers in the City.

My reporting examines Council meetings, business papers, finances and governance, and reports on information obtained through the Act.

Councillors have appeared on podcasts run by the organisation, some for two episodes - Cr Boyd, Cr Killian, Cr Tribe, Cr Norris and Cr Ben Krikstolaitis.

I will use the information requested to report to that readership. I give this information as context for the public interest assessment.

1. The public interest in disclosure

There is a presumption in favour of disclosure unless there is an overriding public interest against it (section 5). The Act's object is that access is restricted "only when there is an overriding public interest against disclosure" (section 3(1)(c)). There is a general public interest in favour of disclosure (section 12(1)). Among the examples in the note to section 12 are that disclosure could reasonably be expected to "enhance Government accountability or contribute to positive and informed debate on issues of public importance" and to "inform the public about the operations of agencies". The following considerations add specific weight here.

Staffing is a live public issue. How Council's people feel about their employment bears directly on its capacity to deliver services, retain skilled staff and control the costs of turnover and vacancies. Residents are entitled to know whether the workforce delivering their services is stable and confident.

Rates. The community is being asked to consider potential rate increases. Whether the organisation is being managed in a way that retains and engages staff is directly relevant to whether ratepayers are getting value for what they already pay.

An HR matter of serious public concern. Council is the subject of an investigation by the Office of Local Government under section 430 of the Local Government Act 1993. The published terms of reference concern the recruitment of the General Manager, the keeping of recruitment records, the management of conflicts of interest on the recruitment panel, and Council's recruitment policies, procedures and training. To my knowledge the findings have not been published. I do not suggest the survey bears on those findings. The point is that employment practices at Council are the subject of formal external scrutiny, and staff views on how they are treated at work are information the public cannot obtain from any other source.

Taken together, these considerations are strong and specific, and they favour full release.

1. Objection to the Chief Executive Officer deciding this application

The statutory position
A reviewable decision on an access application may only be made by, or with the authority of, the principal officer of the agency (section 9(3)). That authority may be given "generally or in a particular case". Council's principal officer is the Chief Executive Officer, Mr Andrew Constance. If he decides this application himself, internal review is not available (section 82(2)), and the only avenues left are external. I therefore ask Council to deal with this question now, before a decision is made. I have taken two other matters to NCAT, and I intend to exercise my full legal rights in relation to this request.

The test
I do not allege actual bias.

The question is one of apprehended bias: whether a fair-minded lay observer might reasonably apprehend that the decision-maker might not bring an impartial mind to the decision. The principle is stated in Ebner v Official Trustee in Bankruptcy [2000] HCA 63. It was applied to a statutory decision made by a council officer in Isbester v Knox City Council [2015] HCA 20. Appearance is enough, and no actual partiality need be shown.

Why the test is engaged here

(i) The subject matter. The survey records what Council's staff think of the organisation that the Chief Executive Officer leads and manages. Any results or commentary on leadership, culture, trust in senior management or workplace conduct reflect directly on him. He would be deciding whether information that may reflect on his own performance is released. The Act is clear that the prospect of embarrassment or loss of confidence is irrelevant to the public interest test (section 15(c)), but a decision-maker in that position creates the appearance that it is not.

(ii) Unanswered requests that he not decide my matters. On 3 June 2026, and again on 13 July 2026, I asked in matter 81190E that the Chief Executive Officer not decide it. Council has not answered either request. In matter 81039E, on 29 July 2026 I asked for an independent reviewer, and the Chief Executive Officer decided the matter himself on 30 July 2026 without answering that request.

(iii) A continuing dispute. I have challenged GIPA decisions that the Chief Executive Officer made personally, and external review proceedings about Council's GIPA decisions are on foot in the NSW Civil and Administrative Tribunal (NCAT 2026/290715).

(iv) The correspondence restrictions. The Chief Executive Officer is the author of the restrictions on my correspondence with Council that are described in his letters of 27 September and 19 October 2026. An observer could reasonably consider that he is not neutral about me as an applicant.

What I ask

(1) That the Chief Executive Officer not make the decision on this application, and not direct or influence the person who does.

(2) That, under section 9(3), the Chief Executive Officer give authority in this particular case to an appropriately senior officer who had no role in preparing the survey or in the management response to it, and no role in the matters listed above. If no such officer is available, I ask that the authority go to an independent person to whom the function can lawfully be delegated.

(3) That Council tell me in writing, promptly and within 5 working days, who will decide the application. If the Chief Executive Officer declines this request, I ask that he give his reasons in writing.

If the Chief Executive Officer decides this application himself, I will rely on this objection in any review. I will go straight to NCAT under section 100(1), because internal review will not be available, and I see complaint to the Information Commissioner as a delay.

1. The grounds on which I expect Council might decline, and why they should not succeed

(a) Informal release. Council cannot treat this as an informal request, and section 8(3) does not apply to it. I have a legally enforceable right to the information unless there is an overriding public interest against disclosure (section 9(1)). Section 15(a) requires Council to exercise its functions so as to promote the object of the Act.
(b) Personal information (Table to section 14, clause 3(a)). The documents requested are aggregate survey results about the workforce as a whole, not information about any identifiable individual. Where survey data is reported only in grouped form, no individual's personal information is revealed. If Council considers that a particular table or free-text entry could identify a person, the Act's mechanism is to delete that matter from a copy of the record (section 74), not to withhold the whole document.
(c) Risk of harm, harassment or intimidation (clause 3(f)). This consideration requires that disclosure expose a person to a risk of harm or of serious harassment or serious intimidation. There is no identified person to whom aggregate results could expose such a risk.
(d) Prejudice to a deliberative process, or to the effective exercise of Council's functions (clauses 1(e) and 1(f)). Survey results are a statement of fact about staff responses, not a deliberation, opinion, advice or recommendation about a decision still to be made. Any management analysis of the results, to the extent it contains advice, can be considered separately without withholding the results themselves (section 74). Council must also be able to show that disclosure could reasonably be expected to prejudice a deliberative process or the effective exercise of its functions. A general preference for privacy is not enough. Publication of staff views does not prevent management from acting on them. If anything, accountability for the response strengthens that process.
(e) Embarrassment, loss of confidence, or the risk that the results will be misunderstood. Section 15(c) provides that the fact disclosure might cause embarrassment to, or a loss of confidence in, the Government is irrelevant and must not be taken into account. Section 15(d) provides that the possibility that information might be misinterpreted or misunderstood is irrelevant. The same reasoning applies to embarrassment to Council. Poor results, if there are any, are the strongest reason for disclosure rather than an argument against it.
(f) Confidentiality of the survey, or the interests of a survey provider (clauses 1(d), 4(c), 4(d) and 4(e)). Any assurance given to staff concerns the confidentiality of individual responses, which I am not seeking. It does not extend to the aggregate results, which Council commissioned and holds for its own management purposes. For clause 1(d), Council would have to show that disclosure of aggregate results could reasonably be expected to prejudice the supply of confidential information that facilitates the effective exercise of its functions. For clause 4, it would have to show that disclosure of Council's own workforce figures could reasonably be expected to diminish the competitive

commercial value of information or prejudice a person's legitimate business interests, or to prejudice the conduct, effectiveness or integrity of research. A workforce survey run for management purposes is not that kind of research. A private assurance to staff or a provider is not a consideration against disclosure that the Act recognises (section 14).
(g) Burden. Council may refuse to deal with an application only for the reasons listed in section 60(1), "and for no other reason". The request is for a small number of existing documents that can be located and provided electronically with little effort, so dealing with it would not require an unreasonable and substantial diversion of Council's resources (section 60(1)(a)).
(h) The results are not yet final, or have not yet been presented to staff or councillors. The Act does not exempt information because it has not yet been presented internally, and I ask for the results as they exist at the date of Council's decision. If a final version is imminent, I ask that Council say so and provide it when it is available.
8. Fees

The application fee covers the first hour of processing (section 64, and see the note to section 66). Please do not impose a processing charge without first giving me an estimate and a breakdown of the time claimed. If Council decides to impose a processing charge, I ask for the 50% reduction under section 66(1), because information about the state of Council's workforce is of special benefit to the public generally. A refusal to reduce a processing charge is a reviewable decision. If Council does not decide this application within time, the application fee must be refunded and no processing charge can be imposed (section 63(1) and (4)).

1. The form of Council's decision, and my review rights

If Council decides to refuse access to any part of the information, I ask that the notice of decision comply fully with section 61. That means it must state Council's reasons, the findings on any material questions of fact with a reference to the sources on which they rest, and the general nature and format of the records concerned. I also ask that it identify the specific public interest consideration relied on for each part withheld, explain why it is said to outweigh the considerations in favour of disclosure identified in Part 5, and say which parts are being released.

I will review any decision on this application carefully. If a decision is wrong, I intend to use my review rights. Refusing access (section 80(d)), refusing to deal with the application (section 80(c)), imposing or refusing to reduce a processing charge, and a deemed refusal (section 63(1)) are all reviewable decisions. As the access applicant, I may apply to NCAT for an administrative review of a reviewable decision under section 100(1). That application can be made directly, with no need to seek internal review first, and it must be made within 40 working days after notice of the decision is given to me (section 101(1)). NCAT can then make its own decision on the merits (Administrative Decisions Review Act

1997, section 63), and on a review Council carries the onus of justifying its decision (section 105(1)). I may instead seek internal review under section 82 where it is available, or review by the Information Commissioner. I reserve all of my rights under the Act. This letter, including the objection in Part 6 and the reasons in Parts 5 and 7, may be relied on in any such review.

1. Summary of what I ask

1. That Council acknowledge this as a valid formal access application and confirm the date it was received.
2. That the application be decided by an independent decision-maker authorised under section 9(3), and not by the Chief Executive Officer, and that Council tell me who that person is within 5 working days.
3. That Council release the documents in full, by email to , within 20 working days of receipt.
4. That any decision to withhold material set out the reasons and findings required by section 61, with the specific public interest consideration relied on for each part withheld.
5. That no processing charge be imposed without an estimate and, if one is imposed, that it be reduced by 50% under section 66(1).

Yours sincerely

Stephen Prothero
